

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY  
MARTINEZ, CA  
DEPARTMENT 14  
JUDICIAL OFFICER: CECILIA CASTELLANOS  
HEARING DATE: 09/22/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email [Dept14@contracosta.courts.ca.gov](mailto:Dept14@contracosta.courts.ca.gov) and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

**Zoom hearing information**

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

**Law & Motion**

**1. 9:00 AM CASE NUMBER: L23-06824**

**CASE NAME: DISCOVER BANK VS. SAGAR BONDADA, JR.**

**\*HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO STIPULATION**

**FILED BY:**

**\*TENTATIVE RULING:\***

Plaintiff moves to set aside a stipulation in this matter and enter a judgment pursuant to the stipulation, based on failure of defendant to comply with the terms of the stipulation.

Defendant has filed no opposition. Three previous hearings were continued because defendant had not been given notice of the hearing. It still appears that plaintiff, who has not filed a responsive pleading in the matter, has not been given notice of the hearing, because of the lack of an address for service in the court file.

The stipulation, (filed December 15, 2025), however, constitutes a first appearance for this purpose, and the defendant's signature is followed by his name, Sagar Bondada, Jr., and his mailing address, 2974 Chevy Way, San Pablo, CA 94806-3216. This is sufficient to enable the Court to give notice to plaintiff of the new hearing date, and enable plaintiff to serve, and file proof of service with the court. (Plaintiff previously served the motion at this same address.)

The hearing is continued to January 12, 2027, 9:00 a.m., with the Court to serve notice at 2974 Chevy Way, San Pablo, CA 94806-3216.

2. 9:00 AM CASE NUMBER: L24-03844

CASE NAME: CONNECT BY AMERICAN FAMILY VS. FATIMA CARLOS

\*HEARING ON MOTION FOR DISCOVERY TO DEEM REQUEST FOR ADMISSIONS ADMITTED AND FOR SANCTIONS IN THE AMOUNT OF \$585.00

FILED BY: CONNECT BY AMERICAN FAMILY

\*TENTATIVE RULING:\*

Plaintiff moves to deem admitted Requests for Admission, which were served on defendant and to which no response was made.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. (Code Civ. Proc. § 2033.280(b).)

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory, unless the party subject to the sanction acted with substantial justification or other circumstances would make a sanction unjust. (Code of Civ. Proc. Section 2033.290(c).)

The Court's ability to grant the motion, however, is affected by a drafting error in Request Number 2. It states: "Admit that on or about 8/17/22, you [ENTER LOSS DESCRIPTION]." Number 3 states "Admit that due to the above negligence, Plaintiff issued payment under the Insured's policy in the Amount of \$15771.15." The error in Number 2 renders it unintelligible, and Number 3 relies on the "above" admission, and thus also is unintelligible.

The motion to seem admitted is granted as to Requests for Admission Numbers 1 and 4 and is denied as to Numbers 2 and 3.

Plaintiff's request for sanctions in the amount of \$585 is granted in part: it is reduced to \$292.50.

**3. 9:00 AM CASE NUMBER: L24-06739**  
**CASE NAME: JOHN LANGERSTON VS. JOHN KANG**  
**\*HEARING ON MOTION IN RE: PLAINTIFF'S MOTION TO TAX COSTS**  
**FILED BY: LANGERSTON, JOHN**  
**\*TENTATIVE RULING:\***

Plaintiff moves to tax costs. (This is separate from the pending motion to award attorney's fees as a sanction under Code of Civil Procedure section 128.5.) The appropriateness and necessity of costs is best decided by the judge who presided over the case and trial. Accordingly, the Court continues this motion until January 12, 2027, 9:00 a.m., when Judge Athanasiou will be available. Plaintiff is to give notice.

**4. 9:00 AM CASE NUMBER: L25-02597**  
**CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. JOSEPH RELVA**  
**\*HEARING ON MOTION IN RE: MSJ**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant, who is self-represented.

#### Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 et seq. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation*, *supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the

factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

### **Cause of Action: Breach of Contract**

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In this case, the contract at issue is an American Express cardmember agreement. In the instant matter, the court first finds that the declaration of Cesar Eduardo Cervantes, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Cervantes declared that he was familiar with the record keeping practice of American Express National Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

Plaintiff has provided credit card billing statements and a Cardmember Agreement. The remaining exhibits show a Cardmember Agreement, where the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account.

These exhibits, coupled with the declaration of Mr. Cervantes, establish a prima facia showing for Breach of Contract, and that the balance owed to the Plaintiff is \$13,845.68. The burden would normally shift to the Defendant at this point, but the Motion is unopposed. In addition, defendant's answer, filed May 22, 2025, does not deny the allegations of the complaint, nor does it assert any affirmative defenses.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.

Plaintiff to prepare the order after hearing.

**5. 9:00 AM CASE NUMBER: L25-05676**  
**CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER**  
**\*HEARING ON MOTION IN RE: FOR LEAVE TO ADD EXHIBIT "N" TO THE 3RD AMENDED COMPLAINT**  
**FILED BY: SCHINDLER, JULIE A M**  
**\*TENTATIVE RULING:\***

Plaintiff moves for leave to add a new Exhibit, designated as Exhibit N, to the Third Amended Complaint. Defendants argue that the motion is unnecessary, on the ground that the information contained in the proposed Exhibit (a medical record) is already alleged in the Third Amended Complaint. Nonetheless, however, they do not oppose the motion as long as it is not deemed to constitute a Fourth Amended Complaint. The underlying concern appears to be that defendants have demurred more than once, only to have plaintiff amend the complaint again.

Amendments of pleadings are liberally granted, particularly where there is no prejudice to the opposing party.

The motion to amend the Third Amended Complaint by adding Exhibit N is granted with the proviso that the addition of Exhibit N shall not constitute the filing of a Fourth Amended Complaint, including for purposes of any pending or future demurrer or motion to strike. No other changes to the Third Amended Complaint are authorized by this order.

**6. 9:00 AM CASE NUMBER: L25-08444**  
**CASE NAME: CAPITAL ONE N.A. VS. YEVGENIYA KOSHTA**  
**\*HEARING ON MOTION IN RE: MOTION UNDER CCP 454 TO PRECLUDE PLN ACCT EVIDENCE OR ALT COMPEL FURTHER ACCT FILED BY DEF ON 4/3/26**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Defendant moves under Code of Civil Procedure section 454 that plaintiff be precluded from offering an account at trial, or, in the alternative, that plaintiff be ordered to provide a further account.

Section 454 provides as follows:

It is not necessary for a party to set forth in a pleading the items of an account therein alleged, but he must deliver to the adverse party, within ten days after a demand thereof in writing, a copy of the account, or be precluded from giving evidence thereof. The court or judge thereof may order a further account when the one delivered is too general, or is defective in any particular.

The “account” is often referred to as a “Bill of Particulars.” Failure to comply with the ten-day limit does not require exclusion, at least where a response was provided shortly after the deadline and there is no prejudice to the defendant. (*Cromer v. Strieby* (1942) 54 Cal.App.2d 405, 409.)

Plaintiff’s response is essentially that discovery under the Civil Discovery Act is the more appropriate method to resolve these issues, because the provision is intended to enable the defendant to respond to the complaint. (See *Dobbins v. Hardister* (1966) 242 Cal.App.2<sup>nd</sup> 787, 795.) Plaintiff offers no justification for the failure to timely respond. As to the sufficiency of the materials, Plaintiff argues that the response included “all available account statements,” and that this is sufficient.

Defendant’s initial request for a Bill of Particulars made 9 separate requests (including subparts). She alleges that the statements provided did not satisfy all of the demands (although the response is not provided). Defendant, however, fails to establish that she is entitled to make specific demands that go beyond simply setting forth “a copy of the account” as set forth in the statute.

Defendant also objects that the response was not verified, but the statute (in the second paragraph of section 454), requires that the Bill of Particulars be verified only where the complaint was verified. The complaint here was not verified.

Defendant has failed to establish that it was prejudiced by the late filing of the Bill of Particulars. While the Bill apparently did not comply with Defendant’s specific demands, the Court finds that Defendant has not shown that it is “too general, or is defective in any particular,” as required by section 454.

The motion is denied.

**7. 9:00 AM CASE NUMBER: L25-09371  
CASE NAME: CAPITAL ONE N.A. VS. BRANDON RUTLEY**

**\*HEARING ON MOTION IN RE: MTN TO VACATE DISMISSAL & ENTER JUDGMENT FILED BY PTLF. ON 06/09/2026**

**FILED BY: CAPITAL ONE N.A.**

**\*TENTATIVE RULING:\***

Plaintiff moves to vacate the dismissal entered pursuant to stipulation and enter a judgment for plaintiff.

Plaintiff gave notice to defendant of its intent to enforce the terms of the stipulation by way of a notice dated March 16, 2026. Defendant filed a responsive declaration on April 7, 2026. Plaintiff filed this motion on June 9, 2026. The matter was set for September 22, 2026. The file contains no evidence, however, that plaintiff ever served the moving papers or notice of hearing date. Defendant's mailing address is contained in his declaration filed April 7, 2026.

Due to the lack of service on defendant, the motion is continued to January 12, 2027, at 9:00 a.m.

**8. 9:00 AM CASE NUMBER: L25-11330**

**CASE NAME: WELLS FARGO BANK, N.A. VS. ANDREW LAWRENCE**

**\*HEARING ON MOTION FOR DISCOVERY MTN TO DEEM REQ'S FOR ADMISSIONS ADMITTED & FOR NONAPPEARANCE FILED BY PLTF ON 05/29/2026**

**FILED BY: WELLS FARGO BANK, N.A.**

**\*TENTATIVE RULING:\***

Plaintiff moves to deem admitted Requests for Admission, which were served on defendant and to which no response was made.

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory, unless the party subject to the sanction acted with substantial

justification or other circumstances would make a sanction unjust. (Code of Civ. Proc. Section 2033.290(c).)

The declaration of plaintiff's counsel shows that the requests were served by mail (and electronically), and that the time for response ran without any response from defendant. Plaintiff's counsel sent a meet and confer letter, although it is not required.

The motion is granted. Sanctions are not requested.

**9. 9:00 AM CASE NUMBER: L25-11532**  
**CASE NAME: MODERN FLIRTING LLC VS. IGOR NOSOVITSKIY**  
**\*HEARING ON MOTION IN RE: NTC \$ MTN FOR ORDER VACATING AND SETTING ASIDE DEFAULT (AND DEFAULT JUDGMENT) DEC, MPA**  
**FILED BY: NOSOVITSKIY, IGOR**  
**\*TENTATIVE RULING:\***

Defendant seeks to set aside the default entered against him in this breach of contract case. Defendant also seeks to set aside the default judgment, but while a judgment has been applied for, it has not yet been entered.

In defendant's declaration, he sets forth a number of different claims in defense of the suit, all of which go to the merits of the dispute. At no point does he assert that he was not served with the summons and complaint or was served improperly. The proof of service asserts that he was served by substitute service on February 15, 2026. The request to enter default was filed on April 24, 2026. Nor does defendant contend that he failed to file a responsive pleading due to mistake, inadvertence, or excusable neglect.

As a threshold matter, however, the file contains no proof of service of the motion on plaintiff's counsel. Accordingly, the motion is continued to January 12, 2027, at 9:00 a.m., to allow Defendant to serve the motion and notice of the continuance in a timely manner.

**10. 9:00 AM CASE NUMBER: L25-14969**  
**CASE NAME: ONEMAIN FINANCIAL, LLC AS SERVICER FOR ('ASF') WILMINGTON TRUST, N.A., AS ISSUER LOAN TRUSTEE FOR ONEMAIN FINANCIAL ISSUANCE TRUST 2019-2 VS. ATASHA SCOTT SIMS**  
**\*HEARING ON MOTION FOR DISCOVERY MTN TO COMPEL FURTHER RESPONSES FILED BY DEF ON 06/05/2026**  
**FILED BY: SCOTT SIMS, ATASHA Y**  
**\*TENTATIVE RULING:\***

Defendant moves to compel further responses to its First Request for Production of

Documents and Form Interrogatories, and requests sanctions of \$2,160.

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.)

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. § 2030.290 (as to interrogatories); Code Civ. Proc. § 2031.300 (as to demand for inspection of documents). The propounding party may also seek the imposition of monetary sanctions. *Id.* No pre-filing meet and confer process is required.

According to moving counsel’s declaration, the discovery requests were served on March 16, 2026, by mail. Given the thirty-day response time, plus five days for service by mail, responses were due April 20, 2026. Plaintiff responded on April 22, 2026. Where there is no response, no effort to meet and confer was required by the statute. On April 30, 2026, defense counsel sent a letter to defense counsel stating that no response had been received, that all rights to object had been waived, and that a motion to compel responses would be filed if no responses were received in seven days. The responses, which were actually received the day of the letter, did contain some objections, both general and specific to the individual requests, but they also provided substantive responses. For example, in response to Interrogatory number 112.1, plaintiff objected, but “subject to and without waiving said objection,” provided answers. Thus, it is not clear whether the objections resulted in a failure to provide a substantive response.

Defendant contends that responses must be made without objection. No other infirmity with the responses is described.

Where no timely response is served, objections are waived. (Code of Civil Procedure section 2031.300(a) [document requests; section 2030/290(a) [interrogatories]. The court “on motion, may relieve that party from this waiver” if certain conditions are met. The issue here is whether the fact that plaintiff served responses two days later, and before the defendant had taken any action with respect to compelling responses creates an exception to the waiver-of-objections provision. If an exception is created,

defendant's motion plainly fails, due to failure to meet and confer and failure to provide the Separate Statement in support of the motion. (At one point, defendant's memorandum asserts that a Separate Statement was filed, but none appears in the court records.) *In Sinaiko Healthcare Consulting, supra*, 148 Cal.App.4<sup>th</sup> 390, 403-404, the Court held that providing partial responses after the motion to compel had been filed did not create an exception from the statutory waiver of objections.

Applying the statute literally, the responses were not timely, and the method to obtain relief from the waiver was to file a motion with the court seeking relief from the waiver. Plaintiff acknowledges that it has not done so. Accordingly, the motion must be granted. The court may order, however, only that responses without objection be provided and does not address any other alleged infirmities in the responses. Plaintiff is to file the responses within 30 days.

Defendant requests sanctions of \$2,160, based on a \$600 hourly rate, and including \$900 for time spent on preparing the motion and the remaining \$1,260 for preparation of a reply and appearance at the hearing.

Sanctions are mandatory unless the party subject to the sanction "acted with substantial justification or [where] other circumstances make the imposition of the sanction unjust." (Sections 2020.300 (d), 2032.310(h).) Given the timing of the response and the failure of defense counsel to make any effort to resolve the issues, assuming they have any, the Court finds that plaintiff "acted with substantial justification" and that "other circumstances make the imposition of the sanction unjust."

Thus the Court grants the motion in part, and plaintiff shall provide responses without objection within 30 days of notice of entry of this order. Sanctions are denied.

**11. 9:00 AM CASE NUMBER: L26-01030**

**CASE NAME: DARIUSH ZANDI VS. DOES 1 TO 20**

**\*HEARING ON MOTION IN RE: MOTION TO QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION FILED BY DEF ON 04/07/2026**

**FILED BY:**

**\*TENTATIVE RULING:\***

## **I. Introduction**

This matter comes before the Court on Defendants' *Motion to Quash Service of Summons for Lack of Personal Jurisdiction*, which was filed on April 7, 2026. Plaintiff Dariush Zandi commenced the underlying action by filing a Complaint on January 28, 2026.

The briefing regarding the Motion to Quash is complete. On July 1, 2026, Plaintiff filed an Opposition to the motion, supported by declarations from Dariush Zandi, Steven Nemec, and Frank Kaul. On July 14, 2026, Defendants filed a Reply in support of their motion, as well as the supporting declaration of Sina Pirooz and an Objection to Plaintiff's declarations.

All parties have been timely notified of the filings and the subsequent hearing on this matter. Having reviewed the pleadings, the supporting declarations, and the arguments presented, the Court finds that it has personal jurisdiction over all Defendants named in this case.

Thus, Defendants' motion is DENIED.

## **II. Background**

This dispute arises from allegations that Defendants overcharged Plaintiff by \$20,000 for a purchase Plaintiff made from Defendants' pharmacy. Plaintiff alleges breach of contract and fraud. Plaintiff claims that he negotiated the transaction via phone calls and text messages while he was in California. Defendants counter that the transaction took place entirely on-premises at Defendants' pharmacy in Vancouver, Canada. Plaintiff claims to have communicated with Defendant Pirooz about the transaction, and further alleges that, after the transaction, Defendants refused his request for a refund while he was in California.

Defendants support their contentions with Defendant Sina Pirooz's signed declaration, which states that Pirooz and his pharmacy, 0919169 B.C. Ltd. dba Coal Harbour Pharmacy ("Coal Harbour"), are not registered to do business in California, do not do business in or with California, do not have any present intention of ever doing so, and have no physical or professional presence in California. Pirooz's declaration does not deny that he communicated with Plaintiff by phone and text message while Plaintiff was in California; it denies only that the disputed transaction was part of those communications. Defendants' court papers have been filed by their California counsel.

Plaintiff supports his contentions with three signed declarations. The first declaration details his own account of the transaction, which he alleges took place in part through phone calls and text messages he conducted in California; Plaintiff implicitly acknowledges that he did not place an order through Coal Harbour's website.

The other two declarations were filed by private investigators, and they detail Coal Harbour's website and the investigators' experience ordering supplements from it.<sup>1</sup> The investigators' declarations, supported by photographic exhibits, describe a purchase billed and shipped to Santa Clara, California, and delivered by ordinary mail without requiring any special arrangements. The package's return address named Pirooz individually, and the packing slip enclosed within named Coal Harbour Pharmacy. The investigators' declarations further document Coal Harbour's online storefront, which operates on the Shopify platform and stocks goods independently of the physical

pharmacy. They also document Coal Harbour's FAQs and shipping documentation, which reflect a regular practice of selling and shipping to customers throughout the United States.

Defendants' core argument here is that specific jurisdiction cannot exist for three reasons: First, Defendants do not purposefully avail themselves of California as a forum because they do the vast majority of their business in Canada and do not seek to serve the California market. Second, if Defendants did purposefully avail themselves of California's market, there would still not be specific jurisdiction here because this dispute arose from a transaction that took place entirely in Canada. Finally, even if Defendants did have minimum contacts with California, it would be an undue burden on Defendants to appear in court in California, and thus unreasonable.

Defendants also object to three paragraphs in the Zandi Declaration on the grounds of Evidence Code sections 1200 (hearsay) and 1523, subdivision (a) (oral evidence to prove content of writing).

Plaintiff conversely relies on Defendants' alleged facilitation of internet-based sales to California to establish purposeful availment, and he claims that the transaction occurred at least in part in California, tying this dispute to his requested forum. He argues that jurisdiction is reasonable because modern technology minimizes Defendants' marginal costs of litigating in California instead of Canada, and because most of the evidence relevant to this dispute is digital.

Plaintiff argues in the alternative that the court should allow pretrial discovery to investigate Defendants' actual level of sales into California if specific jurisdiction does not exist on the evidence presented thus far.

### **III. Analysis**

#### **A. Legal Standards**

California courts "may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) Practically, this means the U.S. Supreme Court sets the effective limits on California courts' personal jurisdiction. (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 444–445 (*Vons*).)

Personal jurisdiction exists either as "general (sometimes called all-purpose) jurisdiction [or] specific (sometimes called case-linked) jurisdiction." (*Ford Motor Co. v. Mont. Eighth Judicial Dist. Court* (2021) 592 U.S. 351, 358 (*Ford*).) The parties here only invoke specific jurisdiction, which is analyzed under a three-pronged inquiry:

When determining whether specific jurisdiction exists, courts consider the relationship among the defendant, the forum, and the litigation. A court may exercise specific jurisdiction over a nonresident defendant only if: (1) the defendant has purposefully availed himself or herself of forum

benefits; (2) the controversy is related to or arises out of [the] defendant's contacts with the forum; and (3) the assertion of personal jurisdiction would comport with fair play and substantial justice.

When a defendant moves to quash service of process for lack of specific jurisdiction, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction. If the plaintiff meets this initial burden, then the defendant has the burden of demonstrating that the exercise of jurisdiction would be unreasonable.

(*Snowney v. Harrah's Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062 (*Snowney*) (quotation marks and citations omitted for clarity).)

While lower federal courts do not bind California courts, "they are persuasive and entitled to great weight." (*Etcheverry v. Tri-Ag Service, Inc.* (2000) 22 Cal.4th 316, 320.) California courts often rely on lower federal court precedent in analyzing personal jurisdiction. (E.g., *Snowney, supra*, 35 Cal.4th at p. 1064–1065; *Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 269–270 (*Pavlovich*).)

### **1. Purposeful Availment**

The purposeful availment inquiry "focuses on the defendant's intentionality" and ensures constitutional Due Process by preventing "jurisdiction solely as a result of 'random,' 'fortuitous,' or 'attenuated' contacts." (*Pavlovich, supra*, 29 Cal.4th at p. 269.) When a defendant interacts with a forum state intentionally, then "it has clear notice that it is subject to suit there." (*Ibid.*) The internet does not change the inquiry: defendants purposefully avail themselves of California as a forum if they "purposefully derive[] a benefit from their Internet activities in California." (*Snowney, supra*, 35 Cal.4th at pp. 1064–1065.)

This analysis is "not rigid and formalistic, but rather practical and pragmatic." (*Boschetto v. Hansing* (9th Cir. 2008) 539 F.3d 1011, 1016 (*Boschetto*).) "The formation of a contract with a nonresident defendant is not, standing alone, sufficient to create jurisdiction." (*Id.* at p. 1017.) However, when "a defendant, in its regular course of business, sells a physical product via an interactive website and causes that product to be delivered to the forum, the defendant 'expressly aimed' its conduct at that forum." (*Herbal Brands, Inc. v. Photoplaza, Inc.* (9th Cir. 2023) 72 F.4th 1085, 1093 (*Herbal Brands*).) If a defendant "direct[s] its activities toward all 50 states," then each state properly has jurisdiction over it. (*Briskin v. Shopify, Inc.* (9th Cir. 2025) 135 F.4th 739, 758 (en banc).)

### **2. Relatedness**

Relatedness is satisfied if "there is a substantial nexus or connection between the defendant's forum activities and the plaintiff's claim." (*Jayone Foods, Inc. v. Aekyung Industrial Co. Ltd.* (2019) 31 Cal.App.5th 543, 560 (*Jayone Foods*).) That connection need not be causal. (*Ford, supra*, 592 U.S. at p. 362.) When a defendant cultivates a particular kind of business in California, Californian plaintiffs' claims are "related" if they were harmed by the *kind* of business that the defendant cultivated. (*Daimler Trucks North*

*America LLC v. Superior Court* (2022) 80 Cal.App.5th 946, 958 (*Daimler*).)

### **3. Reasonableness**

To determine whether jurisdiction would be unreasonable,

the court must consider the burden on the defendant, the interests of the forum State, and the plaintiff's interest in obtaining relief. It must also weigh in its determination the interstate judicial system's interest in obtaining the most efficient resolution of controversies; and the shared interest of the several States in furthering fundamental substantive social policies. Where ... a defendant who purposefully has directed its activities at forum residents seeks to defeat jurisdiction, it must present a compelling case that the presence of some other considerations would render jurisdiction unreasonable.

(*Snowney, supra*, 35 Cal.4th at p. 1070, quotation marks and citations omitted for clarity.) “[T]alismanic jurisdictional formulas” do not exist for this inquiry; instead, “the facts of each case must [always] be weighed’ in determining whether personal jurisdiction would comport with ‘fair play and substantial justice.’” (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 485–486, quoting *Kulko v. California Superior Court* (1978) 436 U.S. 84, 92.)

A defendant's inconvenience, on its own, does not defeat jurisdiction “unless the inconvenience is so great as to constitute a deprivation of due process ... the same technological progress in communication and transportation that has increased the flow of commerce between the states and the need for jurisdiction over nonresidents, has simultaneously decreased the burdens inherent in defending a lawsuit in a foreign tribunal.” (*Integral Development Corp. v. Weissenbach* (2002) 99 Cal.App.4th 576, 592 (cleaned up) (*Integral Development*).)

### **B. Discussion**

The court finds that it has personal jurisdiction over both Defendants with respect to both of Plaintiff's claims.

First, Plaintiff has proven that both Pirooz and Coal Harbour purposefully availed themselves of California as a forum. Second, Plaintiff has proven that both claims here are related to Defendants' purposeful contacts with California. Finally, Defendants have not made a compelling case that jurisdiction here is unreasonable.

#### **1. Plaintiff has shown that Defendants purposefully availed themselves of California as a forum by facilitating sales to California in the regular course of their e-commerce business.**

Two cases help illustrate how Defendants purposefully availed themselves of California as a forum:

In *Boschetto, supra*, the Ninth Circuit found purposeful availment lacking when a

Wisconsin man used eBay to facilitate the sale of a “lone transaction for the sale of one item” to a Californian buyer. (539 F.3d at p. 1017) The sale was not purposeful availment because it created no sustained connection between the defendant and California. (*Ibid.*) Instead, “the eBay listing was not part of broader e-commerce activity; the listing temporarily advertised a good for sale and that listing closed once the item was sold, thereby extinguishing the Internet contact for this transaction within the forum state.” (*Id.* at p. 1018.) With respect to “‘random,’ ‘fortuitous,’ or ‘attenuated’” contacts, the sale might have been “random” or “fortuitous” because of car sales’ typically local nature, and it was “attenuated” because it constituted the entirety of the defendant’s business in California. (*Pavlovich, supra*, 29 Cal.4th at p. 269.)

Conversely, in *Herbal Brands, supra*, the same court ruled that out-of-state defendants who had used Amazon to sell Herbal Brands’s products into Arizona had purposefully availed themselves of Arizona as a forum state. (72 F.4th at p. 1088.) The defendants had control over whether their products arrived in Arizona because they intentionally served all 50 states, choosing not to exclude Arizona. (*Id.* at p. 1094–1095.) The court explained that even a single sale and shipment to a forum state can establish purposeful availment so long as it was not “a truly isolated sale.” (*Id.* at p. 1095.) Though not contested, the court held that a sale into a forum would be purposeful availment if it occurred within “a defendant’s regular course of business,” itself a “case-specific question that turns on many factors.” (*Id.* at pp. 1094, 1095.) In other words, a single e-commerce sale to a forum state cannot be “‘random,’ ‘fortuitous,’ or ‘attenuated’” if it occurs in a defendant’s regular course of business.

Here, Plaintiff has shown that Coal Harbour’s website mediates actual sales and shipments into California, “purposefully deriv[ing] a benefit from [its] Internet activities” here in its regular course of business. (*Snowney, supra*, 35 Cal.4th at p. 1063.) Like the sellers in *Herbal Brands*, Coal Harbour uses an e-commerce storefront to intentionally facilitate sales to a forum state (there, Arizona; here, California); while Coal Harbour could have chosen not to ship its products here, it did. (See *Herbal Brands, supra*, 72 F.4th at p. 1094–1095; Nemec Decl. Ex. 2 pp. 2, 12, Ex. 4 pp. 2, 4.) Both Amazon, used in *Herbal Brands*, and Shopify, used by Coal Harbour, are third-party sales and fulfillment services, but in neither case does third-party presence defeat the ultimate control defendants exercise over their targeting of different forums. (See *Herbal Brands, supra*, 72 F.4th at p. 1088; Pirooz Decl. ¶ 10; Nemec Decl. ¶¶ 3–7.)

Plaintiff has also shown that Coal Harbour’s California sales are not random, fortuitous, or attenuated. Coal Harbour’s website precludes the possibility of random or fortuitous sales—it chose to ship supplements only to certain markets, successfully excluding most of the planet. (Nemec Decl. Ex. 4 pp. 2–4.) Defendants’ actual argument is that Coal Harbour does no “business in or with California,” which suggests attenuated contacts, not random or fortuitous ones. (Pirooz Decl. ¶ 6.) But comparing *Boschetto* with *Herbal Brands* makes clear why that argument is incorrect. Coal Harbour operates an online store that stocks goods independently of its physical location. (Nemec Decl. Ex. 2 p. 3.) Its multiple FAQs and extensive shipping documentation demonstrate that its

regular course of business includes repeated online sales to the U.S. (Nemec Decl. Ex. 2 p. 3, Ex. 4 pp. 2–3.) Coal Harbour is, in fact, engaged in the type of “broader e-commerce activity” that the court in *Boschetto* held was absent there. (*Boschetto*, *supra*, 539 F.3d at p. 1018.) The fact that Plaintiff’s private investigators were able to have Coal Harbour ship them supplements using an ordinary online order corroborates that Coal Harbour’s “regular course of business” includes sales into California. (*Herbal Brands*, *supra*, 72 F.4th at p. 1094.)

Pirooz’s personal purposeful availing of California’s market is even more direct than Coal Harbour’s. Even if he physically sold Plaintiff goods in Canada, Pirooz does not contest that he communicated via phone calls and text messages with Plaintiff while Plaintiff was located in California, and no evidence suggests he made any effort to avoid serving California (for example, by screening phone customers). (Zandi Decl. ¶ 9; Pirooz Decl. ¶¶ 9–11.) Further, the package that Plaintiff’s investigators received listed Pirooz as the return addressee, not Coal Harbour or another employee, implying that Pirooz is personally involved with administering Coal Harbour’s e-commerce. (Nemec Decl. Ex. 1.) These actions indicate that Pirooz knowingly and purposefully facilitated sales to customers he knew or should have known were in California, demonstrating *his own* purposeful availing. Because his personal contacts demonstrate purposeful availing, there is no need at this stage to engage in any corporate-veil analysis to determine whether Coal Harbour’s contacts are also Pirooz’s.

**2. Plaintiff has shown that this dispute is related to the Defendants’ forum contacts because the dispute concerns a sale of the same type as Defendants’ regular business with California.**

To establish specific jurisdiction, Plaintiff must further prove that his claims share a “substantial nexus or connection” with Defendants’ forum activities that constitute purposeful availing. (*Jayone Foods*, *supra*, 31 Cal.App.5th 543, 560.)

In *Daimler*, *supra*, the court found that a Californian plaintiff’s suit over an out-of-state accident while driving a Daimler truck was sufficiently related to Daimler’s purposeful contacts with California to establish relatedness. (80 Cal.App.5th 946, 950.) Daimler argued two points: first, that it “did not design, manufacture, assemble, or sell the subject vehicle in California,” and second, that “the injuries and accident occurred in Oklahoma.” (*Id.* at p. 957.) The Court of Appeals rejected both arguments, citing *Ford*, *supra*, 592 U.S. 351. (*Daimler*, *supra*, 80 Cal.App.5th at p. 950.) It explained that the *truck itself* need not have any connection with California; relatedness was satisfied because (1) Daimler built a market for the same *type* of truck to be sold in California and (2) the Californian plaintiff was using the truck for Daimler’s intended purpose. (*Ibid.*) Regarding the location of the injuries, the court explained that “the place of injury ... may be relevant” to relatedness, but is not a prerequisite. (*Ibid.*) Instead, it held that the plaintiff’s residence in California, past use of the truck in California, and medical bills incurred in California demonstrated relatedness enough to overcome the accident’s out-of-state location. (*Ibid.*) The court distinguished the case from the Supreme Court’s

extreme example of *no* relatedness presented in *Ford*: “a California court hearing a claim ... brought by an Ohio plaintiff based on an accident occurring in Ohio involving a car purchased in Ohio.” (*Daimler, supra*, 80 Cal.App.5th at p. 950, quoting *Ford, supra*, 592 U.S. at p. 362 fn. 3.)

Here, Plaintiff’s claims of breach and fraud are both related to Coal Harbour’s targeting of the California market. Though Plaintiff did not order anything from Coal Harbour’s website, (Zandi Decl. ¶¶ 7–9, 18), he remotely ordered products from Coal Harbour while in California, a similar *type* of sale that Coal Harbour’s website was intended to generate: remote sales generating revenue from California’s large market. Just as the truck in *Daimler* only needed to be the same *type* of truck Daimler created a market for in California, Plaintiff’s purchase only needs to be of the same *type* as those Coal Harbour cultivated. (See *Daimler, supra*, 80 Cal.App.5th at p. 957.) Further, even if Zandi executed part of his purchase in Canada, it is undisputed that he conducted some communication over the phone and via text message while in California. (Zandi Decl. ¶ 9; Pirooz Decl. ¶¶ 9–11.) Additionally, regardless of where the credit card swipe occurred, Zandi’s ongoing financial injury is experienced in his home, in California, just as the plaintiff in *Daimler* bore the brunt of his medical expenses—his financial injuries—in California. (See *Daimler, supra*, 80 Cal.App.5th at p. 957; Zandi Decl. ¶¶ 19–21.) Moreover, even if Pirooz’s claim that no part of the transaction occurred in California is true, Defendants’ refusal to refund Plaintiff occurred while Plaintiff was in California, anchoring his fraud claim here. (Zandi Decl. ¶¶ 18–21.) Given that a *lack* of relatedness requires circumstances as stark as an Ohioan bringing a suit in California court over events and injuries that occurred entirely in Ohio, (see *Ford, supra*, 592 U.S. at p. 362 fn. 3), the multiple ways in which Plaintiff’s alleged transaction and injury relate to California must establish relatedness.

Pirooz’s purposeful contacts are as related to this litigation as Coal Harbour’s are. Plaintiff has alleged that Pirooz was personally involved in each phase of the disputed transaction. (Zandi Decl. ¶¶ 7, 9, 19.) Under Evidence Code section 780, the court finds that Pirooz undermined his own credibility by making the glaringly false claim that he and Coal Harbour do no business with California. (Pirooz Decl. ¶ 6.) Given this relative lack of credibility, the court adopts Plaintiff Zandi’s version of the facts here, finding that Pirooz was personally involved in the disputed transaction. The fact that Pirooz was the named addressee of Coal Harbour’s return address supports this view of the facts. Because Pirooz’s purposeful avilment consisted of his administration of e-commerce sales to California, the fact that he did exactly that here is determinative. Plaintiff’s claims are thus also sufficiently related to Pirooz’s purposeful California contacts, so personal jurisdiction over him is appropriate.

**3. Jurisdiction is reasonable because all relevant factors favor jurisdiction except for Defendants’ inconvenience, which is not so severe as to violate Due Process.**

Considering “the burden on the defendant[;] the interests of the forum State[;] ... the

plaintiff's interest in obtaining relief[;] ... the interstate judicial system's interest in obtaining the most efficient resolution of controversies; and the shared interest of the several States in furthering fundamental substantive social policies," the court finds jurisdiction here reasonable. (*Snowney, supra*, 35 Cal.4th at p. 1070, quotation marks and citations omitted for clarity.) Defendants rely on inconvenience alone, which is not a "compelling" reason to deny the presumption of jurisdiction that exists because Plaintiff has made his requisite showings. (*Ibid.*)

First, as they claim, the burden on Defendants is significant here. While evidence refutes Defendants' claim that they conduct no business with California, nothing suggests that Defendants have a physical presence here or conduct business in person here. (Pirooz Decl. ¶¶ 2–7.) Consequently, Defendants' appearance in California would not be in the course of their regular business activities. That said, "the same technological progress in communication and transportation that has increased the flow of commerce between the states and the need for jurisdiction over nonresidents, has simultaneously decreased the burdens inherent in defending a lawsuit in a foreign tribunal." (*Integral Development, supra*, (2002) 99 Cal.App.4th 576, 592 (quotation marks omitted).) Technological progress with respect to remote virtual presence has only accelerated since 2002. Defendants have participated in the case thus far, and they do not appear to have had concrete difficulties litigating in this court, having filed numerous briefs, objections, and a declaration. Evidence shows that Defendants are not denied their day in court, so their inconvenience does not rise to the level of a Due Process violation. Nonetheless, this factor weighs against jurisdiction, even if only weakly.

Second, California has a material interest in ensuring that its citizens enjoy the protections of its own laws, a unique interest that each state has in all its citizens. This factor weighs in favor of jurisdiction.

Third, Plaintiff's recovery is unlikely to depend on the litigation's venue, but California is a much more convenient forum for him. Plaintiff's claims—breach of contract and fraud—are not unique, and nothing on the record indicates a different resolution would be likely in Canada. Further, most of the evidence relevant to this dispute will be digital, so there is no advantage or disadvantage to Plaintiff's ability to recover that California be his venue. Plaintiff, however, is an individual who resides in California. It would be at least as inconvenient for him to appear in Canada as it would be for Defendants to appear in California. This factor also weighs in favor of jurisdiction.

Fourth, there are no issues of interstate efficiency either: California is the only state with any interest in this case, so no other state would make a better or more efficient venue for this litigation. This factor weighs in favor of jurisdiction.

Finally, there are also no apparent substantial social policies that would benefit from this litigation being conducted in Canada, certainly not the social policies of California or any U.S. state. This factor is neutral towards jurisdiction.

On balance, these factors do not make the court's jurisdiction over Defendants unreasonable. Defendants' inconvenience is not sufficient to interfere with Due Process

and no other factor weighs against jurisdiction, so Defendants have not met their burden of making a compelling case against jurisdiction's reasonableness.

**4. The court does not need to rule on Defendants' objections to the Zandi Declaration or to grant Plaintiff's request for jurisdictional discovery.**

The court need not reach the merits of Defendants' objections to paragraphs 15-17 of the Zandi Declaration because none of those paragraphs are material to the prior jurisdictional analysis here.

The court denies Plaintiff's alternative request for jurisdictional discovery because it is moot given the court's finding of jurisdiction on the existing record.

**IV. Conclusion**

Plaintiff has produced ample evidence at this stage to show that personal jurisdiction exists over Defendants. Defendants ship their products to California, cultivating a Californian market, and this dispute arose out of Defendants' efforts to profit off of that market. There is also no compelling reason that jurisdiction would violate Due Process here. Together, these facts make specific jurisdiction appropriate.

**12. 9:00 AM CASE NUMBER: L26-01118**  
**CASE NAME: WELLS FARGO BANK, N.A. VS. GLADYS HURTADO**  
**\*HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED**  
**FILED BY: WELLS FARGO BANK, N.A.**  
**\*TENTATIVE RULING:\***

Off-calendar. Case dismissed pursuant to stipulation filed September 14, 2026.

**13. 9:00 AM CASE NUMBER: L26-04278**  
**CASE NAME: PNC BANK, NATIONAL ASSOCIATION VS. MICHAEL PADILLA**  
**HEARING IN RE: APP FOR WRIT OF POSSESSION AND HEARING - CONCEPT PLUS INC.**  
**FILED BY: PNC BANK, NATIONAL ASSOCIATION**  
**\*TENTATIVE RULING:\***

Pursuant to Code of Civil Procedure sections 511.010 through 516.050, plaintiff applies for a writ of possession as to 1 Bobcat MT100 Mini Track Loader in the possession of Concept Plus, Inc. and/or Michael Padilla. The declaration of Michael McGinley establishes compliance with requirements for the issuance of the writ, and there is no opposition. The Court also grants plaintiff's request for a "turnover order" pursuant to Code of Civil Procedure section 512.070.

**14. 9:00 AM CASE NUMBER: L26-04278**  
**CASE NAME: PNC BANK, NATIONAL ASSOCIATION VS. MICHAEL PADILLA**  
**HEARING IN RE: APP FOR WRIT OF POSSESSION AND HEARING - MICHAEL PADILLA**  
**FILED BY: PNC BANK, NATIONAL ASSOCIATION**  
**\*TENTATIVE RULING:\***

Pursuant to Code of Civil Procedure sections 511.010 through 516.050, plaintiff applies for a writ of possession as to 1 Bobcat MT100 Mini Track Loader in the possession of Concept Plus, Inc. and/or Michael Padilla. The declaration of Michael McGinley establishes compliance with requirements for the issuance of the writ, and there is no opposition. The Court also grants plaintiff's request for a "turnover order" pursuant to Code of Civil Procedure section 512.070.

**Law & Motion**  
**Add On**

**15. 9:00 AM CASE NUMBER: RS25-0911 CIVIL**  
**CASE NAME: DENNIS HILL VS BALJIT SINGH**  
**HEARING ON SUMMARY MOTION**  
**FILED BY: SINGH, BALJIT**  
**\*TENTATIVE RULING:\***

**Hearing required.** Pursuant to California Rules of Court 3.151(b), in a motion for summary judgment in an unlawful detainer any opposition and reply may be given orally at the hearing. Accordingly, the Court's has not even formed a tentative view of how it would rule on the matter. The Court has received no written opposition.

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"),

§ 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at 850.

Pursuant to Code of Civil Procedure section 437c(s), the requirements of subsections (a) and (b) do not apply in unlawful detainers. Thus, the ordinary notice requirements and the requirement of a Statement of Undisputed Facts do not apply here. Plaintiff has nonetheless provided a Statement of Undisputed facts.

By this Court's order of September 10, 2026, all of the matters specified in Plaintiff's Request for Admissions, Set One were deemed admitted. Those requests, totaling 31 in number, essentially called for admission of the elements of plaintiff's case, as well as admission of the lack of any affirmative defenses, including breach of the warranty of

habitability. The matters in Plaintiff's (unnecessary) Statement of Undisputed Facts track the admitted matters closely, although they also cite to other evidence.

At the hearing, defendant is invited to address this issue.